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## Sanction for Violation of GDPR

The National Authority for the Supervision of Personal Data Processing completed, in January 2025, an investigation into the operator SHOPBAG GROUP ONLINE SRL and found a violation of the provisions of Article 83 paragraph (5) letter e) of Regulation (EU) 2016/679.

As such, the operator was fined in the amount of 9,949.8 lei (equivalent to 2,000 euros).

The investigation was initiated following a complaint from an individual who claimed that they did not receive a response to their requests for the deletion of their account and the associated data from the website depozit-online.ro, owned by the operator.

During the investigation, it was found that the complainant wished to delete their account created on the operator's website depozit-online.ro, but the operator did not comply with their request.

Furthermore, the operator did not respond to the requests made by the National Authority for the Supervision of Personal Data Processing in the exercise of its investigative powers.

Thus, considering that the operator did not provide the information requested by the National Authority for the Supervision in order to fulfill its duties, the operator was sanctioned with an administrative fine for violating the provisions of Article 83 paragraph (5) letter e) of Regulation (EU) 679/2016.

“Article 83 General Conditions for Imposing Administrative Fines

(...) (5) For violations of the following provisions, in accordance with paragraph (2), administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, up to 4% of the total worldwide annual turnover corresponding to the previous financial year shall be imposed, taking into account the higher value:

(a) the basic principles for processing, including conditions for consent, in accordance with Articles 5, 6, 7, and 9;

(b) the rights of data subjects in accordance with Articles 12-22;

(c) the transfers of personal data to a recipient in a third country or an international organization, in accordance with Articles 44-49;

(d) any obligations under national legislation adopted pursuant to Chapter IX;

(e) non-compliance with an order or a temporary or definitive limitation on processing, or the suspension of data flows, issued by the supervisory authority under Article 58 paragraph (2), or failure to grant access, in violation of Article 58 paragraph (1). (...)”

At the same time, a corrective measure was ordered for the operator to communicate to the A.N.S.P.D.C.P all the information and documents requested through the addresses that were communicated to them.

Legal and Communication Department

A.N.S.P.D.C.P